

Sahana vs The State Of Karnataka, Reptd. By Chief ... on 24 April, 2024

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OS No.6474/2023 - Judgment(D)

KABC010269602023

IN THE COURT OF XVI ADDL. CITY CIVIL AND
SESSIONS JUDGE (CCH 12) AT BENGALURU

DATED: 24th APRIL 2024

PRESENT

SMT. JYOTHSNA D., LL.B., LL.M.,
XVI ADDL. CITY CIVIL AND SESSIONS JUDGE (CCH 12)
BENGALURU
ORIGINAL SUIT No.6474/2023

PLAINTIFF/S SAHANA,
D/O. CHANDRASHEKAR,
AGED ABOUT 11 YEARS,
R/AT No. 26, 2ND CROSS,
ANUBHAVA NAGAR,
NAGARABHAVI,
BANGALORE - 560 072.

SINCE MINOR REPTD. BY HER NATURAL
GUARDIAN - MOTHER,
SMT. PAVITHRA BAI,
W/o RAGHU N.,
MAJOR, AGED 29 YEARS,
R/AT No. 26, 2ND CROSS,
ANUBHAVA NAGAR, NAGARABHAVI,
BANGALORE - 560 072.

Represented by Smt/Sri M.K.N., Advocate

-- VS --

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OS No.6474/2023 - Judgment(D)

DEFENDANT/S 1) THE STATE OF KARNATAKA, REPTD. BY
CHIEF SECRETARY
VIDHANA SOUDHA, BANGALORE-01
2) KARNATAKA SECONDARY EDUCATION
EXAMINATION BOARD, 6TH CROSS

MALLESHWARAM

BANGALORE-03

- 3) CORDIAL HIGH SCHOOL
8TH MAIN
VIJAYA NAGAR WEST
BANGALORE-40
- 4) REGISTER OF BIRTHS AND DEATHS
REPTD. BY COMMISSIONER
1ST FLOOR
BBMP COMMERCIAL COMPELX
SUBHASH NAGAR
BEHIND UPPARPETE P.S.
BANGALORE-09.
- 5) THE SECRETARY
UNION OF INDIA
GOVT. OF INDIA
NEW DELHI-110011.
- 6) UIDAI REGIONAL OFFICE
KHANIJA BHAVAN
No.9, 3RD FLOOR
SOUTH WING, RACE COURSE ROAD,
BANGLAORE-01

Defendants No1 & 2 represented by
2nd ADGP

Defendants No.3 and 4 Exparte

Defendant No.5 - by Standing

Government Counsel Sri Prakash Rao

K.,

Defendant No.6 by Smt/Sri S.G.H.,

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OS No.6474/2023 - Judgment(D)

Advocate

Date of Institution of suit	05.10.2023
Nature of suit	Declaration
Date of commencement of evidence	23.01.2024
Date of Judgment	24.04.2024
Duration	Year/s Month/s Day/s -- 06 19

(SMT. JYOTHSNA D.,)
XVI ADDL.CITY CIVIL AND

SESSIONS JUDGE, BENGALURU
JUDGMENT

This suit is filed by the natural guardian that is the mother of the plaintiff on behalf of her minor daughter seeking the judgment and decree to declare the name of the father of the plaintiff as Sri Raghu N., and for an order of mandatory injunction directing the defendants to enter the plaintiff's father's name as Raghu N., in her birth certificate, Aadhaar Card and school records and for such other reliefs as this Court deems fit.

2. Case of the plaintiff in brief is that: The plaintiff was born on 25.08.2012 to Sri Chandrashekar and Smt.Pavithra Bai. Copy of the Birth Certificate and Aadhaar Card of the plaintiff is produced along with the plaint. The plaintiff is presently studying at Cordial High School.

3. It is further averred that due to certain differences in their relationship, plaintiff's biological father Chandrashekar and mother Pavithra Bai got their marriage dissolved through Court decree, copy of which is produced along with the plaint.

4. It is further averred that subsequently, her mother Smt.Pavithra Bai married Raghu N., S/o. B.M.Nagaraju on 15.04.2023 and they are residing together in the address mentioned in the cause title to the plaint. Copy of the Marriage Registration Certificate and Identity Proof are produced along with the plaint.

5. It is further averred that the plaintiff intends to change the name of her father in her Birth Certificate, Aadhaar Card and School Records from Chandrashekar to Raghu N. As an abundant caution, Smt.Pavithra Bai addressed a representation to Chandrashekar to his last known address through RPAD requesting him to consent for the said change of plaintiff's father's name on record. However, the said representation returned with a share "No such person in this address, return to sender".

6. It is further averred that the plaintiff, with an intention to change her father's name, sworn to an affidavit on 30.05.2023 declaring her intention to change her father's name from Chandrashekar to Raghu N. Subsequently, the contents of the affidavit have been published in the English and Kannada daily Hosa Digantha and Indian Express newspapers dated 10.06.2023.

7. It is further averred that the plaintiff approached the defendants for rectification of name of her father in her marks cards and other documents. The defendants did not respond properly. Having no other alternative, the plaintiff issued legal notice under Section 80(1) of CPC on 4.8.2023 calling upon the defendants to change her father's name from Chandrashekar to Raghu N. The defendants have received the said notice, but failed to implement the same.

8. It is further averred that it is essential to rectify the plaintiff's father's name as sought for in the Birth Certificate, Aadhaar Card and School records of the plaintiff. Hence, she filed this suit.

9. The cause of action for the suit arose on 15.04.2023 when the plaintiff's mother married Raghu N., and began to reside with him at the aforementioned address and the cause of action is

continuous one. The plaintiff has paid proper court fee on the plaint. Hence, prayed to decree the suit.

10. In response to service of suit summons, the IInd ADGP Smt.Pushpalatha B., has filed memo of appearance on behalf of defendant No 1 and filed their written statement. Despite of service of summons, defendant No.3 and 4 did not appear before the court, hence, defendant No 3 and 4 were placed ex-parte. The Standing Government Counsel Sri Prakash Rao K., filed memo of appearance on behalf of defendant No.5 and filed the written statement. The defendant No.6 appeared through Smt. Sumangala Hegde, Advocate and filed written statement.

11. In their written statement, the defendants No.1 and 2 have contended that the suit is not maintainable either in law or on facts. The allegations made against the defendants in the suit are all false and put the plaintiff to strict proof of the same.

12. As per the Circular issued by the Commissioner of the Education Department, there is no provision to change the plaintiff's father's name in her school records. The suit is barred by limitation as the same is filed after a lapse of considerable time. The averments made in paragraph 3 to 8 are denied as false and put the plaintiff to strict proof of the same. There is no cause of action for the suit. Hence, prayed to dismiss the suit.

13. In his written statement, the defendant No.5 has contended that the suit filed by the plaintiff is not maintainable either in law or on facts. The suit is speculative in nature, bereft of merits, lacks bonafides and requires to be dismissed. There is no cause of action against the defendant No.5 and even otherwise also, it is created for the purpose of unduly harassing the government machinery. Prayer is incompatible and inept.

14. It is further contended that the act of registration of births and deaths are done under the provisions of Registration of Births and Deaths Act of 1969 amended in 2023 and state rules and orders framed thereunder. Further registration of births and deaths lies with the respective state government/union territory administration.

15. It is further contended that the Registrar General of India at national level only co-ordinates and unifies the activities of the Chief Registrars in the matter of registration of births and deaths under the provision of Section 3 of the Registration of the Births and Deaths Act. If there is any error in entering the births and deaths, in such instance, the Secretaries of the respective state government is authorised to correct the error and cancel the entry under the provision of Section 15 of the Act.

16. It is further contended that in order to change plaintiff's biological father's name in the birth certificate, the step father has to adopt the child under Juvenile Justice (Care and Protection of Children) Act, 2015 or Hindu Adoption and Maintenance Act 1956. It is clear that in case of institutional adoption, the concerned Registrar shall register or make changes in the birth records of the adopted child incorporating the name of the adoptive parents as parents and the date of birth of the child as mentioned in the adoptive order issued by the District Magistrate and in case of non institutional adoption ie., with relatives under the provision of Hindu Adoption and Maintenance

Act 1956, the need for production of adoption deed. In the above background, the defendant No.5 denies entire averments of the plaint and prays to dismiss the suit.

17. In his written statement, the defendant No.6 has contended that the suit is not maintainable either in law or on facts. There is no cause of action against defendant No.6. The plaintiff has to follow Aadhaar Act 2016 and Regulations thereto to effect the change in her Aadhaar, seeking the relief of direction which is contrary to law. Hence the suit is liable to be dismissed.

18. It is further contended that Aadhaar (Enrolment and Update) Sixth Amendment Regulations 2018 provides that the name can be updated twice by resident. In case the name is to be updated more than prescribed limit, it can be done through an exception handling process for update of name, the following process should be followed:

a) In case of complete name change or change in the first name of the resident, the Gazette Notification of name change to be uploaded as proof of Identity document.

b) The resident is requested to visit any of the enrollment centers and change his/her name (update her demographic information) with the assistance of the operator and /or supervisor by providing proof of identity as per the document mentioned in the link,

c) Regional Office shall do due diligence and ascertain whether the update request beyond the prescribed threshold is genuine. RO may seek additional information from the resident and

d) Further with respect to the updation, the request should emanate from the resident only.

19. It is contended that the plaintiff has filed the above suit against the defendant No.6 without following the procedure narrated above which is already available to the general public.

20. It is further contended that from the records available in UIDAI portal, the Aadhaar Number Holder ie., the plaintiff has not updated her name, she is left with two more chance. The plaintiff can update her name providing Gazette Notification of name change. Mandatory Rules and provisions cannot be overlooked while invoking the jurisdiction of the Court. Mere service of notice under Section 80 of CPC will not create any right and it is also not compliance of Aadhaar Act and Regulations for update of name in Aadhaar. Hence, there being no cause of action for the suit, the defendant No.6, while denying the averments of the plaint in toto, has prayed the Court to dismiss the suit.

21. On the basis of above pleadings and materials placed on record the following issues are framed by this Court for the determination of this case:-

Issue No 1- Whether the natural guardian of plaintiff Smt. Pavithra Bai proves that she has got dissolved her marriage with plaintiff's biological father Sri Chandrashekar and remarried Sri Raghu N.?

Issue No 2- Whether she further proves that there are grounds to declare her remarried husband Sri Raghu N., as father of the plaintiff in the place of her biological father Sri Chandrashekar as per law?

prove that suit is barred by limitation? Issue No 4- Whether defendant No.5 proves that there is no cause of action to this suit?

Issue No 5- Whether the plaintiff proves that she is entitled to the relief of mandatory injunction as sought for?

Issue No 6- Whether the plaintiff is entitled to the relief as sought for?

Issue No 7- What order or decree?

22. To prove the suit claim of the plaintiff, her mother Smt Pavithra Bai entered into witness box as PW 1 as she is minor. To substantiate their case, she has got marked certain documents as Exs.P 1 to 16. On the other hand, all the above mentioned learned Counsels for defendants cross examined PW 1 but did not lead their evidence.

23. Heard, perused materials placed on record, and on the basis of the same this Court answers above issues as under;

Issue No 1-	In the affirmative,
Issue No 2-	In the negative,
Issue No 3-	Do not survive for consideration
Issue No 4-	Do not survive for consideration
Issue No 5-	In the negative,
Issue No 6-	In the negative,
Issue No 7-	As per final Order;
For the following;	

REASONS

24. Issue No 1 and 2 :- These two issues are inter-

connected to each other, hence, to avoid repeated discussions they are taken up together as here under;

25. Admittedly, this suit is filed by the natural guardian that is the mother of the plaintiff on behalf of her minor daughter seeking the judgment and decree to declare the name of the father of plaintiff as Sri Raghu N., and for the order of mandatory injunction directing the defendants to enter the plaintiff's father's name as Raghu N., in her birth certificate, Aadhaar Card and school records and for such other reliefs as this Court deems fit.

26. To prove the case of the plaintiff, her mother entered into witness box as PW 1 and filed sworn affidavit in chief on behalf of plaintiff under which all the plaint averments are reiterated. To substantiate her case, she has produced certain documents which are marked as Ex.P 1 to Ex.P 16.

27. Firstly, this Court gone through the documentary evidence of the plaintiff. Under that, Ex.P.1 is the Birth certificate of the plaintiff which shows that the child named Sahana born on 25-08-2012 to the parents named as Pavithra Bai and Chandrashekar. It is undisputed one that the biological father of the plaintiff is Chandrashekar. Only, the question is whether in the birth certificate the name of the second husband of the mother of a child can be inserted as father in the place of the name of biological father in the birth certificate of a child.

28. Ex.P.2 is the Aadhaar card of the plaintiff which shows her father's name as Chandrashekara. The birth certificate is the first authenticated document recorded in the name of a new born child and these aadhaar card etc., are the documents shall be entered on the basis of the birth certificate of a child.

29. Ex.P.3 is the student identity card issued by the 3rd defendant which shows that the plaintiff is studying in VI standard and her parents name is entered as Chandrashekar and Pavithra Bai.

30. Ex.P.7 is the certified copy of judgment and decree in MC No.929/2021 dated 04-11-2022 through which the marriage solemnised on 19-05-2011 at Sri Dharmasthala Manjunatha Temple between the parents of the plaintiff that is Pavithra Bai and Chandrashekar was dissolved by a decree of divorce. Ex.P.4 is the certificate of Registration of marriage dated 15-04-2023 solemnised between mother of the plaintiff that is PW 1 and Sri Raghu N. The dates mentioned in these two documents show that the second marriage of the mother of the plaintiff was solemnised only after the dissolution of her earlier marriage. Ex.P.5 is the aadhaar card of PW 1 which shows her husband's name as Raghu N. The issue date of this document is shown as 05-04-2015 and print out date of this document is shown as 30-06-2023. The rules for correction in Aadhaar Card is different from correction in other authenticated documents. It is well known that a person has two opportunities to correct mistakes/entries in adhaar card by way of self-application through online facility in UIDAI website.

31. Ex.P.6 is the Aadhaar Card of Raghu N., who is the 2nd husband of the mother of the plaintiff which will not give much weightage to this case as this document is only for the identity of the said person as it is issued by Unique Identification Authority of India.

32. Ex.P.8 is the sworn affidavit dated 30-06-2023 executed by PW 1 and attested before notary public M. K. Devaki. The recitals of this document runs like;

"1. 1 Mrs. PAVITHRA BAI, I am the parent of Sahana, who was born on 25.08.2012. That her name as per the records in her Educational Institution and all documents Sahana D/o Chandrashekar.

2. By virtue of this affidavit, I want to add initial to my daughter name as Sahana R., and change to her father name from Chandrashekar to Raghu N.

3. That she shall at all times, in all dealings and proceedings sign the name Sahana R., as her name and Raghu N., as her father name thereby substituting her former name and father name.

4. I am getting a public notice published to this effect in the news papers.

This declaration is hereby executed and submitted to the concerned authorities to accomplish the change of name and her father name. I hereby state that whatever is stated herein above are true to the best of my knowledge. Solemnly affirmed this affidavit."

33. Next to that, Exs.P.9 and Exs.P.10 are the public notices published in Hosadiganta Kannada newspaper and The new Indian Express News paper dated 10-06-2023 in which PW 1 declared the name of her daughter as SAHANA R., from SAHANA and also changed her father's name as RAGHU N., in the place of CHANDRASHEKAR.

34. In this regard, before going through cross examination of PW 1 by the learned counsel for defendants, this court gone through legal consequences of such self declaration by a mother of child. Undoubtedly, as a natural guardian, mother of a child has power under Guardians and Wards Act to take actions on behalf of minor child. But it is not an absolute right. At such juncture the welfare of the child mainly looked into.

35. Before that, in this case at this stage we have to look into whether PW 1 as a natural guardian has power to declare her second husband as father in the place of the biological father of minor plaintiff. As per Ex.P 4 and Ex.P 7, it is clear that the parties to this suit are Hindus and the Hindu Personal Laws are applicable to them. Hence, in this regard, this court gone through Section 6 of THE HINDU MINORITY AND GUARDIANSHIP ACT, 1956 and reproduced here under;

"6. Natural guardians of a Hindu minor.

--The natural guardian of a Hindu minor; in respect of the minor's person as well as in respect of the minor's property (excluding his or her undivided interest in joint family property), are--

in the case of a boy or an unmarried girl--the father, and after him, the mother: provided that the custody of a minor who has not completed the age of five years shall ordinarily be with the mother;

(b) in the case of an illegitimate boy or an illegitimate unmarried girl--the mother, and after her, the father;

(c) in the case of a married girl--the husband:

Provided that no person shall be entitled to act as the natural guardian of a minor under the provisions of this section--

(a) if he has ceased to be a Hindu, or

(b) if he has completely and finally renounced the world by becoming a hermit (vanaprastha) or an ascetic (yati or sanyasi).

Explanation.--In this section, the expressions "father" and "mother" do not include a step-father and a step-

mother.

36. Here in this case the marital relationship between the biological parents' of the minor plaintiff is dissolved by divorce as per Ex.P.7. Now her mother wants to declare her second husband Raghu N., as father of the plaintiff. But as per section, 6(a) the guardian of minor girl child given as;

"(a) in the case of a boy or an unmarried girl--

the father, and after him, the mother:

provided that the custody of a minor who has not completed the age of five years shall ordinarily be with the mother;"

37. As extracted supra, law itself says that the guardian of minor child is father, after him mother. Then in this case, we have to consider the 1st husband ie., the biological father of plaintiff is the natural guardian of plaintiff. But here plaintiff is a female child. The proviso says about the custody of minor child upto 5 years of age shall be ordinarily with mother. The custody of a child is different from guardianship. Custody is with whose custody or under care child is living. Guardianship is vast subject than the custody. Every legal right and other rights of minor child is carefully enforced under guardianship without harming the welfare of the minor child.

38. This court gone through Ex.P.7 ie., the judgment and decree of divorce of plaintiff's parents', wherein nowhere there is mention about either custody or guardianship of the plaintiff. As per Ex.P.1, the Birth Certificate of the plaintiff, she has born on 25-08-2012. That means she has already crossed the age of 5 years. Then the natural guardian of plaintiff is her father Chandrashekar. Even if we take it in liberal interpretation of law as this minor plaintiff is a female child and under care and custody of PW1 the mother, but no documents are produced by PW 1 to show that the whole guardianship of the plaintiff is given to her.

39. Moreover, there are no documents produced to show that the biological father of plaintiff is not in this world. That means he is alive and when the biological father of the plaintiff is alive, then there are no grounds established by PW1 to show that on what basis she wants to declare the foster or step father of the plaintiff as her father.

40. Moreover, the explanation portion of the above Section 6 specifically mentions that the step father is not included in the expression "father". Then, when the natural father the guardian under above Section 6 is alive, then this PW1 as a mother has no authority to get declare her second husband as the father of her child plaintiff without consent of natural guardian/biological father of the plaintiff that is Chandrashekar. Moreover, no documents are produced by PW1 about the adoption of plaintiff by her 2nd husband with consent of the biological father of the plaintiff.

41. This case should not be looked into with liberal interpretation as mere declaration of name, because as per Section 8 of above mentioned Act, the power of natural guardian is limited as;

"8. Powers of natural guardian.--

(1) The natural guardian of a Hindu minor has power, subject to the provisions of this section, to do all acts which are necessary or reasonable and proper for the benefit of the minor or for the realization, protection or benefit of the minor's estate; but the guardian can in no case bind the minor by a personal covenant.

(2) The natural guardian shall not, without the previous permission of the court,--

(a) mortgage or charge, or transfer by sale, gift, exchange or otherwise, any part of the immovable property of the minor; or

(b) lease any part of such property for a term exceeding five years or for a term extending more than one year beyond the date on which the minor will attain majority. (3) Any disposal of immovable property by a natural guardian, in contravention of sub-section (1) or sub-

section (2), is voidable at the instance of the minor or any person claiming under him.

(4) No court shall grant permission to the natural guardian to do any of the acts mentioned in sub section (2) except in case of necessity or for an evident advantage to the minor.

(5) The Guardians and Wards Act, 1890 (8 of 1890), shall apply to and in respect of an application for obtaining the permission of the court under sub-section (2) in all respects as if it were an application for obtaining the permission of the court under section 29 of that Act, and in particular--

(a) proceedings in connection with the application shall be deemed to be proceedings under that Act within the meaning of section 4A thereof;

(b) the court shall observe the procedure and have the powers specified in sub-sections (2), (3) and (4) of section 31 of that Act; and

(c) an appeal shall lie from an order of the court refusing permission to the natural guardian to do any of the Acts mentioned in sub-section (2) of this section to the court to which appeals ordinarily lie from the decisions of that court.

(6) In this section, "Court" means the city civil court or a district court or a court empowered under section 4A of the Guardians and Wards Act, 1890 (8 of 1890), within the local limits of whose jurisdiction the immovable property in respect of which the application is made is situate, and where the immovable property is situate within the jurisdiction of more than one such court, means the court within the local limits of whose jurisdiction any portion of the property is situate."

42. The declaration of father of the plaintiff as sought for in this case directly affects on the welfare of the child. The guardianship of minor child mainly connected to her legal rights.

43. It is true that as a civil right, mother of the plaintiff has power to change the name of her minor child. But it will not effect on her other rights as the name is just for identity of a person. But here in this case, the mother of the plaintiff is seeking to declare her second husband as father of plaintiff in the place of her biological father.

44. The child/plaintiff is a female child coming under Section 6 of Hindu inheritance and Succession Act as;

"6. Devolution of interest in coparcenary property.□(1) On and from the commencement of the Hindu Succession (Amendment) Act, 2005 (39 of 2005), in a Joint Hindu family governed by the Mitakshara law, the daughter of a coparcener shall,□

(a) by birth become a coparcener in her own right the same manner as the son;

(b) have the same rights in the coparcenary property as she would have had if she had been a son;

(c) be subject to the same liabilities in respect of the said coparcenary property as that of a son, and any reference to a Hindu Mitakshara coparcener shall be deemed to include a reference to a daughter of a coparcener:

Provided that nothing contained in this sub- section shall affect or invalidate any disposition or alienation including any partition or testamentary disposition of property which had taken place before the 20th day of December, 2004.

(2) Any property to which a female Hindu becomes entitled by virtue of sub-section (1) shall be held by her with the incidents of coparcenary ownership and shall be

regarded, notwithstanding anything contained in this Act or any other law for the time being in force, as property capable of being disposed of by her by testamentary disposition.

(3) Where a Hindu dies after the commencement of the Hindu Succession (Amendment) Act, 2005 (39 of 2005), his interest in the property of a Joint Hindu family governed by the Mitakshara law, shall devolve by testamentary or intestate succession, as the case may be, under this Act and not by survivorship, and the coparcenary property shall be deemed to have been divided as if a partition had taken place and,□

(a) the daughter is allotted the same share as is allotted to a son

(b) the share of the pre-deceased son or a pre-

deceased daughter, as they would have got had they been alive at the time of partition, shall be allotted to the surviving child of such pre- deceased son or of such pre-deceased daughter; and

(c) the share of the pre-deceased child of a pre- deceased son or of a pre-deceased daughter, as such child would have got had he or she been alive at the time of the partition, shall be allotted to the child of such pre-deceased child of the pre- deceased son or a pre-deceased daughter, as the case may be. Explanation.□For the purposes of this sub-section, the interest of a Hindu Mitakshara coparcener shall be deemed to be the share in the property that would have been allotted to him if a partition of the property had taken place immediately before his death, irrespective of whether he was entitled to claim partition or not.

(4) After the commencement of the Hindu Succession (Amendment) Act, 2005 (39 of 2005), no court shall recognise any right to proceed against a son, grandson or great-grandson for the recovery of any debt due from his father, grandfather or great-grandfather solely on the ground of the pious obligation under the Hindu law, of such son, grandson or great-grandson to discharge any such debt: Provided that in the case of any debt contracted before the commencement of the Hindu Succession (Amendment) Act, 2005 (39 of 2005), nothing contained in this sub-section shall affect□

(a) the right of any creditor to proceed against the son, grandson or great-grandson, as the case may be; or

(b) any alienation made in respect of or in satisfaction of, any such debt, and any such right or alienation shall be enforceable under the rule of pious obligation in the same manner and to the same extent as it would have been enforceable as if the Hindu Succession (Amendment) Act, 2005 (39 of 2005) had not been enacted.

Explanation.□For the purposes of clause (a), the expression "son", "grandson" or "great- grandson" shall be deemed to refer to the son, grandson or great-grandson, as the case may be, who was born or adopted prior to the commencement of the Hindu Succession (Amendment) Act, 2005 (39 of

2005). (5) Nothing contained in this section shall apply to a partition, which has been effected before the 20th day of December, 2004 Explanation.□For the purposes of this section "partition" means any partition made by execution of a deed of partition duly registered under the Registration Act, 1908 (16 of 1908) or partition effected by a decree of a court.]"

45. As per this Act, the plaintiff (minor child) gets right over the ancestral property of her father by birth. As per Ex.P 1, by birth she is daughter of Chandrashekar, who is divorced husband of PW1. Then she has right over the property of her father Chandrashekar by birth. Either PW1 or any other person including the Court shall not have any power to curtail her right by birth.

46. If it is declared that the second husband of the plaintiff's mother as father of plaintiff, then definitely it will affect on her right. Though plaint is cleverly drafted by seeking prayer (a) as "Declare that the name of the plaintiff's father is Sri Raghu N." but here the declaration of the name of the father is nothing but declaration of father.

47. Now, we have to look into what is the effect of declaration of step father as father of the plaintiff. In this regard, first of all, we have to know what is a father and children relationship by "uterine blood." As per section 3(e) of THE HINDU SUCCESSION ACT, 1956 "(e) full blood "half blood" and "uterine blood"□

(i) two persons are said to be related to each other by full blood when they are descended from a common ancestor by the same wife, and by half blood when they are descended from a common ancestor but by different wives;

(ii) two persons are said to be related to each other by uterine blood when they are

descended from a common ancestress but by different husbands;

Explanation.□In this clause "ancestor" includes the father and "ancestress" the mother;

It is true that the "financial support" of a minor child is for present and future is one of the necessities of life which includes under the welfare of the child. The property under which she has right by birth is her legal necessity by way of finance to her life and it is coming under welfare of child. Hence, we cannot curtail her right by decreeing this case. We have to determine it by due care about the welfare of child though at this stage we are not aware about existence of the ancestral property for biological father but we have to presume it that it may be in existence.

Now, as per Section 3 (f) "heir" means any person, male or female, who is entitled to succeed to the property of an intestate under this Act; And as per Schedule HEIRS IN CLASS I AND CLASS II ;

Class I Son; daughter; widow; mother; son of a pre- deceased son; daughter of a pre-deceased son; son of a pre-deceased daughter; daughter of a pre-deceased daughter; widow of a pre-deceased son; son of a pre- deceased son of a pre-deceased son; daughter of a pre- deceased son of a pre-deceased son; widow of a pre- deceased son of a pre-deceased son 1 [son of a predeceased daughter of a

pre-deceased daughter; daughter of a pre-deceased daughter of a pre-deceased daughter; daughter of a pre-deceased son of a pre-deceased daughter; daughter of a pre-deceased daughter of a pre-deceased son].

Class II I. Father. II. (1) Son's daughter's son, (2) son's daughter's daughter, (3) brother, (4) sister.

Class III. (1) Daughter's son's son, (2) daughter's son's daughter, (3) daughter's daughter's son, (4) daughter's daughter's daughter.

IV. (1) Brother's son, (2) sister's son, (3) brother's daughter, (4) sister's daughter.

V. Father's father; father's mother.

VI. Father's widow; brother's widow.

VII. Father's brother; father's sister. VIII. Mother's father; mother's mother. IX. Mother's brother; mother's sister.

Explanation. In this Schedule, references to a brother or sister do not include references to a brother or sister by uterine blood.

48. In explanation clearly mentioned that the sister by uterine blood do not include in heirs of a person. If we presume that the said Chandrashekar married again and the children through that wife will become children by uterine blood to the plaintiff. If we declare the second husband of mother of the plaintiff, then she will become half-blood relation to the next children of Chandrashekar and uterine relation to children of N. Raghu through the mother of plaintiff which will lead to total confusion and affects on right of the plaintiff and totally give negative effect on the welfare of the minor plaintiff.

49. Next to that, in cross examination of PW 1 by he learned Counsel for defendant No 6 it is elicited that, "

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50. Further in cross examination of PW 1 by the learned counsel for defendant No 5 it is elicited that, "

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“ Here one point to be noted is that when father of the plaintiff is alive, the mother of the plaintiff has no authority/capacity to give plaintiff in adoption to Raghu N., without consent of her biological father as per Hindu Section 8 of Hindu Adoption and Maintenance Act.

51. In her cross examination by the learned Counsel for defendant No 1, she has admitted that at the time admission of plaintiff to the school, as per information given by PW 1, entries are made in the documents and there is no mistake from the said defendant.

52. The learned Counsel for plaintiff relied upon the Judgment of Hon'ble Supreme Court in Civil Appeal Nos 6325-6326 of 2015 (Akella Lalitha vs Konda Hanumantha Rao dated 28-07-2022) in which the ratio laid down as, "19. Before parting with this subject, to obviate any uncertainty it is reiterated that the mother being the only natural guardian of the child has the right to decide the surname of the child. She also has the right to give the child in adoption. The court may have the power to intervene but only when a prayer specific to that effect is made and such prayer must be centered on the premise that child's interest is the primary consideration and it outweighs all other considerations. With the above observations the directions of the high court so far as the surname of the child is concerned are set aside." But this citation is not applicable to the present case, because, in that case the biological father was not alive, but here in this case, he is alive and PW 1 has not made him as party to this suit.

53. On perusal of the documents on record there is no uncertainty or typographical mistake about the name of the father of the plaintiff. Generally problem of names in the documents arose in future only when the documents of same person contains different names, dates and other particulars. Here no such ambiguity is there about name of her father.

54. Next to that, the learned counsel for the plaintiff relied upon and produced copy of judgement in OS No. 4495/2021 before CCH 11 The VI Additional City Civil & Sessions Judge At Bangalore City, but it is not binding on this Court as it is not a precedent.

55. Therefore, as per the facts and circumstances of the case and above discussions, this Court is of the considered opinion that, the mother of the plaintiff that is PW 1 has established that her marriage with biological father of the plaintiff named Chandrashekar was dissolved by way of divorce as per Ex.P 7. It is also established by her that after dissolution of her marriage with the biological father of the plaintiff, she married Raghu N., as per Ex.P 4. But plaintiff utterly failed to prove, that there are grounds to declare her remarried husband Sri Raghu N., as father of the plaintiff in the place of her biological father Sri Chandrashekar as per Law.

56. Hence, this Court answers Issue No.1 in the Affirmative; Issue No 2 in the Negative.

57. Issue No 3 and 4 :- When plaintiff herself failed to prove her case as per negative answer to Issue No.2, then there is no need for discussion on Issue Nos. 3 and 4 under which burden lies on the defendants, hence, these issues are disposed off accordingly.

58. Issue No 5 and 6 :- When plaintiff has failed to prove her case as per negative answer to Issue No.2, then question of granting of relief of mandatory injunction in favour of plaintiff does not arise and the plaintiff is not entitled to the reliefs as sought for in the plaint, hence, this Court answers both Issues No 5 and 6 in the Negative.

59. Issue No 7 :- For the forgoing reasons and discussions, this Court is of the considered opinion that the suit of the plaintiff is liable to be dismissed, accordingly, this Court proceed to pass the following;

ORDER The suit filed by the plaintiff is hereby dismissed.

No order as to Cost.

(Dictated to the Steno Grade I on computer, typed by him, after correction, revision, signed by me and pronounced in Open Court on 24.04.2024) (SMT. JYOTHSNA D.,) XVI ADDL.CITY CIVIL AND SESSIONS JUDGE, BENGALURU ANNEXURE List of witnesses examined for the plaintiff PW 1 - Pavithra Bai List of witnesses examined for the defendants Nil List of documents marked for the plaintiff. EX.P.1 Birth Certificate of the plaintiff Ex.P.2 Aadhaar Card of the plaintiff Ex.P.3 School Identity Card Ex.P.4 Marriage Certificate of the Witness Ex.P.5 Aadhaar Card of the witness Ex.P.6 Aadhaar Card of Raghu ., the husband of the witness Ex.P.7 Certified copy of Judgment and Decree in MC No.929/2021 Ex.P.8 Notarised affidavit dated 30.05.2023 regarding change of name Ex.P.9 & Hosa Digantha and New Indian Express Daily Paper 10 Notification dated 10.06.2023 regarding change of name Ex.P.11 Copy of Legal Notice dated 04.08.2023 sent to the defendants Ex.P.12 6 Postal Receipts Ex.P.13 4 Postal Acknowledgements Ex.P.14 2 Postal Track Consignments Ex.P.15 Section 65-B Certificate in respect of Ex.P.14 Ex.P.16 Office copy of legal notice dated 04.07.2023 List of documents marked for the defendants. Nil.

(SMT. JYOTHSNA D.,) XVI ADDL.CITY CIVIL AND SESSIONS JUDGE, BENGALURU 24.04.2024 (Judgment pronounced in Open Court vide separate Order) ORDER The suit filed by the plaintiff is hereby dismissed.

No order as to Cost.

XVI ADDL.CITY CIVIL AND SESSIONS JUDGE, BENGALURU